

Founders' Memorandum of Understanding

and Good-Faith Acknowledgment of Origination and Co-Foundership

IMPORTANT NOTICE — READ FIRST

This memorandum is a good-faith working draft prepared to record the parties' mutual understanding. It is a template, not legal advice, and it has not been reviewed by a lawyer. Before signing, have it reviewed by a licensed lawyer in the Kingdom of Saudi Arabia, and consider executing a reviewed Arabic version — Arabic is the language of Saudi courts and an Arabic text will control in any local proceeding. Items in [square brackets] must be completed before signature.

1. Parties and date

This memorandum (the “**Memorandum**”) is entered into on **[date]** in **[city, Kingdom of Saudi Arabia]**, between:

- Party A — Mulham Al Zahabi, [nationality], [national ID / iqama no.], of [address] (“Mulham”, the “Founder & Concept Originator”); and
- Party B — Momen Pharaon, [nationality], [national ID / iqama no.], of [address], acting in a personal capacity and operating under the studio brand MomenCrafts, momencrafts.com (“Momen”, the “Co-Founder & Technical Lead”).

Together the “**Parties**”. Decide before signing whether Momen signs personally, through a MomenCrafts legal entity, or both — this affects who holds his obligations and rights.

2. Background

- Mulham conceived, originated and developed the venture concept known as “XHB” — a governed capital decision-intelligence and delivery-assurance platform for capital projects, comprising the Compass and Anchor products, the Field Evidence companion, and the AI Forest architecture (together, the “Concept”).
- The Concept is expressed in the following works authored by Mulham (the “Concept Documents”): the XHB Investor Deck; the XHB Complete Technical & Business Specification; and the XHB AI Forest — Remastered Master Architecture.
- Momen has contributed, and intends to continue contributing, product and technical input, review, and software development to the venture, including work recorded in Annex A.
- The Parties intend to incorporate a company to own and develop the venture (the “Company”) and wish to record, in good faith, their mutual understanding until formal incorporation documents and a shareholders' or founders' agreement are executed.

3. Acknowledgment of origination (binding)

3.1 The Parties acknowledge and agree that the Concept was originated by Mulham, that authorship of the Concept Documents belongs to Mulham, and that origination credit for the Concept shall at all times be attributed to him. Nothing in Momen's past or future contributions transfers, dilutes or challenges that origination credit.

3.2 The Parties record their shared understanding that an idea as such is not a registrable form of intellectual property; legal protection arises from copyright in the documents and code, any patent or trademark filings, confidentiality obligations, and contract. This clause therefore operates as a binding contractual acknowledgment between the Parties and as evidence of origination, and each Party agrees not to assert any contrary claim.

4. Acknowledgment of co-foundership (binding)

4.1 Mulham acknowledges and agrees that Momen is a co-founder of the venture and its Technical Lead, on the basis of the contributions recorded in Annex A and his committed future contributions to the technical build.

4.2 Each Party shall represent the other's role consistently with this Memorandum in all dealings with third parties, including investors and partners: Mulham as Founder & Concept Originator; Momen as Co-Founder & Technical Lead. Formal titles, authorities and equity are matters for the Company's incorporation documents under clause 6.

5. Intellectual property (binding)

5.1 Pending incorporation, each Party retains ownership of the works they respectively author, and holds them for the exclusive benefit of the venture.

5.2 Upon incorporation of the Company, each Party shall execute all documents needed to assign to the Company all intellectual property created for the venture — including the Concept Documents, all software (including the Alignment Room application), brand assets, domain configurations, rulebooks, and any patent applications — on terms recorded in the founders' or shareholders' agreement.

5.3 Neither Party shall use, disclose, license, register, file or commercialize any venture intellectual property outside the venture without the other's prior written consent. Any patent, trademark or design filing relating to the Concept shall be made in the name of the Company or, if made before incorporation, as agreed in writing by both Parties and assigned to the Company on incorporation.

6. Good-faith commitments (statements of intent)

- Work toward incorporating the Company by [target date], in a jurisdiction to be agreed.
- Agree equity, vesting and roles in a formal founders' or shareholders' agreement before or at incorporation; this Memorandum itself grants no equity and creates no partnership.
- Record interim venture decisions in the Parties' shared decision log, exports of which both Parties accept as an accurate record of what was agreed between them.
- Until incorporation, neither Party shall incur obligations, spend money or make commitments in the other's name without written agreement.

7. Confidentiality (binding)

Each Party shall keep confidential, and use only for the venture, all non-public information of the venture and of the other Party — including the Concept Documents, business plans, financial information, and counterparties. This obligation survives for three (3) years after this Memorandum ends or until superseded by the Company's confidentiality terms, whichever is later. Disclosures required by law, or made to professional advisers under confidence, are excepted.

8. Own-time and own-resources representation (binding)

Each Party represents that their contributions to the venture have been and will be made on their own time and with their own resources, without use of any employer's or third party's confidential information, materials, systems or funds, and that to their knowledge no employment or other agreement prevents them from entering into this Memorandum. Each Party remains responsible for their own compliance with any such obligations.

9. Nature and effect of this Memorandum

9.1 Clauses 3, 4, 5, 7, 8, 10 and 11 are intended to be legally binding. Clause 6 records good-faith intentions only and is not binding, except its confidentiality and no-commitment elements.

9.2 This Memorandum does not create a partnership, agency or employment relationship, and does not by itself grant equity, profit share or compensation. It remains in force until superseded by the Company's incorporation documents and founders' or shareholders' agreement, or terminated by either Party on fourteen (14) days' written notice — provided that clauses 3, 5, 7 and 8 survive termination.

10. Governing law and disputes (binding)

This Memorandum is governed by the laws and regulations of the Kingdom of Saudi Arabia. The Parties shall first attempt to resolve any dispute by good-faith discussion within thirty (30) days, and failing that may refer it to [mediation / the competent courts or judicial committees of the Kingdom]. If an Arabic version of this Memorandum is executed, the Arabic text prevails.

11. General (binding)

This Memorandum records the Parties' entire understanding on its subject matter and may be amended only in writing signed by both Parties. It may be signed in counterparts and, to the extent permitted by applicable law, by reliable electronic signature. If any clause is held unenforceable, the remainder stays in effect.

Signatures

Signed in two originals, one for each Party.

**Party A — Founder & Concept
Originator**

Mulham Al Zahabi

**Party B — Co-Founder & Technical
Lead**

Momen Pharaon

Signature

Date: _____

Witness 1 (optional)

Name: _____

Signature

Date: _____

Witness 2 (optional)

Name: _____

Signature

Signature

Date: _____

Date: _____

Annex A — Contribution record

An evidentiary record, acknowledged by both Parties. New entries may be appended over time; each entry should be dated and initialled by both Parties.

Contributor	Contribution	Period
Mulham Al Zahabi	Origination and development of the XHB concept: the governed capital decision-intelligence and delivery-assurance venture, including Compass, Anchor and the AI Forest architecture.	[2025 – 2026]
Mulham Al Zahabi	Authorship of the Concept Documents: XHB Investor Deck (34 pages); XHB Complete Technical & Business Specification (30 pages); XHB AI Forest — Remastered Master Architecture.	[2026]
Mulham Al Zahabi	Domain rulebook and standards grounding (EXPRO, AACE, ISO 21505, reference-class forecasting) embedded in the Concept Documents.	[2026]
Momen Pharaon	Product and technical review of the Concept Documents; contributions to development planning and venture-building strategy.	[Aug 2026]
Momen Pharaon	Design and build of the XHB Alignment Room application (sealed Q&A workspace, database schema and security policies, deployment under momencrafts.com).	[Aug 2026]
Momen Pharaon	[Further technical contributions — append as they occur; each new entry to be dated and initialled by both parties.]	[]

XHB — prepared in good faith · drafted with MomenCrafts · working draft for legal review, [August 2026]